MODERN INDIA I · DAY 2 OF 6 · TEST ON 31 OCT 2026

# British Structure and Constitutional Developments to 1858

Dual Government, Hastings, Cornwallis, land revenue systems and every Act from 1773 to 1858 · mind map · timeline

## The big picture

Today's test has 50 questions: about 25 on how the Company ruled Bengal (Dual Government, Hastings, Cornwallis, land revenue) and about 25 on the Acts of Parliament from 1773 to 1858.

**The logic in one line:** after winning Bengal the Company needed to run it, so it first ruled through the Nawab (1765–72), then took over (Hastings), then built rules and a civil service (Cornwallis) and a land tax. Meanwhile Parliament, alarmed by Company misrule, stepped in over and over: regulate (1773), control (1784), end trade (1813, 1833), prepare for change (1853) and finally take over (1858).

| Pillar | Built mainly by | Key year | One-line hook |
|---|---|---|---|
| **Dual Government** | Clive | 1765–72 | Power without responsibility |
| **Revenue and courts** | Hastings | 1772 | Revenue farming; Diwani and Faujdari Adalat |
| **Civil service, police, Code** | Cornwallis | 1793 | Father of civil services; revenue split from justice |
| **Land revenue** | Cornwallis; Read and Munro; Holt Mackenzie | 1793, 1820, 1822 | Zamindar, ryot, village |
| **Parliamentary control** | Parliament | 1773, 1784 | Regulate, then control |
| **End of trade monopoly** | Parliament | 1813, 1833 | Free trade; Company becomes political |

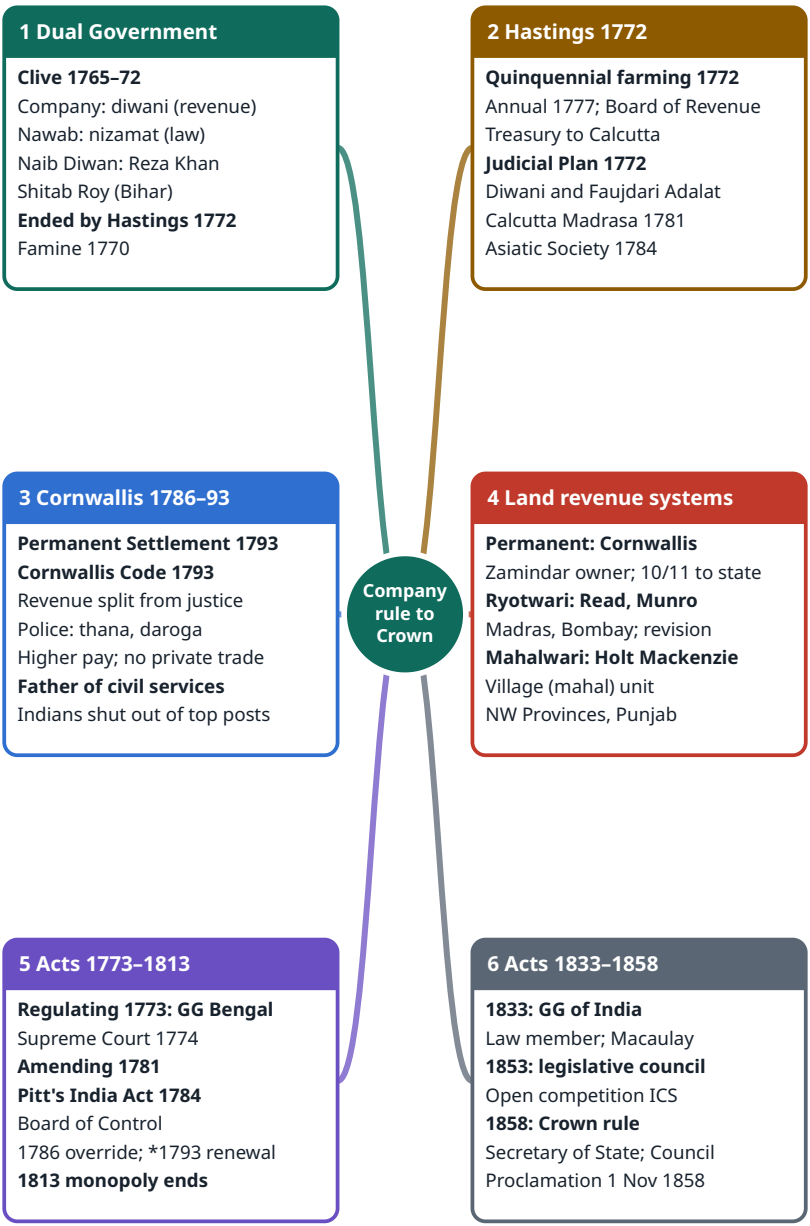
| Pillar | Built mainly by | Key year | One-line hook |
|---|---|---|---|
| **End of Company** | Parliament | 1858 | Crown rule |

## Master timeline

| Year | Event | Under |
|---|---|---|
| **1765** | Diwani; Dual Government begins | Clive |
| **1770** | Great Bengal famine | Cartier |
| **1772** | Dual Government ends; revenue farming; Judicial Plan | Hastings |
| **1773** | Regulating Act (effective 1774) | Hastings |
| **1775** | Nanda Kumar hanged | Hastings |
| **1781** | Amending Act; Calcutta Madrasa | Hastings |
| **1784** | Pitt's India Act; Asiatic Society | Hastings |
| **1786** | Act of 1786: override; Commander-in-Chief | Cornwallis |
| **1787–95** | Impeachment of Hastings | London |
| **1793** | Permanent Settlement; Cornwallis Code; Charter Act | Cornwallis / Shore |
| **1813** | Charter Act: monopoly ends (not tea and China); Rs 1 lakh | Minto I / Hastings (Moira) |
| **1820** | Ryotwari in Madras | Hastings (Moira) |
| **1822** | Mahalwari (Regulation VII) | Hastings (Moira) |
| **1833** | Charter Act: GG of India; Law member | Bentinck |
| **1853** | Charter Act: no fixed period; open competition | Dalhousie |
| **1858** | GoI Act; Queen's Proclamation (1 Nov) | Canning |

# Mind map

Read it in 2 minutes.



## 1. The Dual Government (1765–72)

- After the Treaty of Allahabad (1765) Clive took the **Diwani** (revenue and civil justice) but left the **Nizamat** (police, criminal justice, defence) to the Nawab, who was paid a fixed sum (Rs 53 lakh).
- Why? The Company lacked trained staff, feared European rivals and Parliament, and could use Indian deputies to avoid blame.
- Indian deputies did the work: **Muhammad Reza Khan** (Naib Diwan of Bengal, also deputy Nazim) and **Raja Shitab Roy** (Naib Diwan of Bihar).
- **Effect:** the Company had power without responsibility; the Nawab had responsibility without power. Revenue was squeezed, peasants and artisans suffered, and the **1770 famine** killed about a third of Bengal's people.
- **Ended in 1772** by Warren Hastings; Reza Khan and Shitab Roy were removed and tried.

| Function | Held by | Done by |
|---|---|---|
| **Diwani: revenue, civil justice** | Company | Naib Diwans (Reza Khan, Shitab Roy) |
| **Nizamat: police, criminal justice** | Nawab (on paper) | Deputy Nazim (Reza Khan) |

**UPSC ANGLE**

"Power without responsibility" is the standard Mains line on the Dual Government. Prelims asks who introduced it (Clive), who ended it (Hastings) and who the Naib Diwan was.

**MEMORY HOOK**

**D-D**: Diwani = Dual. Clive starts it (1765); Hastings stops it (1772). Reza Khan = Bengal deputy.

## 2. Warren Hastings (1772–85): revenue, courts, institutions

### Revenue and administration

- **1772:** the Company took over revenue collection directly (stood forth as the Diwan); the treasury moved from Murshidabad to **Calcutta**; the Nawab's allowance was cut from Rs 32 lakh to Rs 16 lakh; the Emperor's Rs 26 lakh tribute stopped; Kora and Allahabad were sold to Awadh.
- **Revenue farming:** land revenue was leased to the highest bidder, first for five years (quinquennial, 1772), then yearly (1777). A Board of Revenue was set up. The result was heavy exaction and peasant ruin, which led to the Permanent Settlement.

### Judicial Plan, 1772

| Court | Level | Judge |
|---|---|---|
| **Diwani Adalat** | District, civil | Collector |
| **Faujdari Adalat** | District, criminal | Qazi and Mufti, supervised by the Collector |
| **Sadar Diwani Adalat** | Calcutta, civil appeal | Governor and Council |
| **Sadar Nizamat Adalat** | Calcutta, criminal appeal | Chief Qazi and Mufti, with a Nawab-appointed head |

- Hindu law for Hindus and Muslim law for Muslims in personal matters.

### Institutions

| Year | Institution | Person |
|---|---|---|
| **1781** | Calcutta Madrasa (Muslim law) | Hastings |
| **1784** | Asiatic Society of Bengal | Sir William Jones |
| **1785** | Gita translated into English | Charles Wilkins |

| Year | Institution | Person |
|---|---|---|
| 1791 | Benares Sanskrit College | Jonathan Duncan (under Cornwallis) |

### Nanda Kumar and the impeachment

- **1775:** Nanda Kumar, who had accused Hastings of bribery, was hanged for forgery by the Supreme Court under Chief Justice **Elijah Impey**; the case is called a judicial murder.
- **1787–95:** Hastings was impeached in the House of Lords (Burke, Sheridan) and acquitted in 1795.

> **MEMORY HOOK**
> Hastings = **R-J-I**: Revenue farming, Judicial plan, Institutions (Madrasa, Asiatic Society).

## 3. Cornwallis (1786–93): civil service, police and the Code

### Civil service

- Higher fixed salaries; ban on private trade and gifts; promotion by seniority.
- Indians were kept out of higher posts (a racial bar that lasted decades).
- He is the **Father of the Civil Services in India**.

### Police

- Zamindars lost police powers. Each district was divided into thanas of about 20 miles, each under a **daroga** (Indian officer).

### Judiciary: the Cornwallis Code (1 May 1793)

| Feature | Detail |
|---|---|
| **Separation** | Revenue administration separated from justice: the Collector lost judicial powers |
| **District** | District Diwani Adalat under a Judge |

| Feature | Detail |
|---|---|
| **Appeal** | Four Provincial Courts of Appeal (Calcutta, Dacca, Murshidabad, Patna); Sadar Diwani and Sadar Nizamat Adalats |
| **Rule of law** | Company servants were answerable to the civil courts for official acts |
| **Subjects** | European subjects tried in the courts of law |

**UPSC ANGLE**

Separation of revenue and justice and rule of law are the two points UPSC attaches to the Code. Cornwallis is paired with Permanent Settlement, civil services and police; Hastings with Judicial Plan and revenue farming.

**MEMORY HOOK**

Cornwallis = **C-P-C-P**: Civil service, Police, Code, Permanent Settlement.

## 4. Land revenue systems

### The three systems side by side

| Point | Permanent Settlement | Ryotwari | Mahalwari |
|---|---|---|---|
| **Year** | 1793 | 1792 (Baramahal); Madras from 1820 | 1822 (Reg. VII); 1833 (Reg. IX) |
| **By** | Cornwallis (with Shore, Grant) | Alexander Read and Thomas Munro | Holt Mackenzie, R. M. Bird |
| **Owner of land** | Zamindar | Ryot (peasant) | Village community (mahal) |
| **Who paid** | Zamindar to the state | Peasant to the state | Village headman for the community |
| **Revision** | Never (fixed for ever) | Every 20–30 years | About every 30 years |

| Point | Permanent Settlement | Ryotwari | Mahalwari |
|---|---|---|---|
| **Share of area** | About 19% | About 51% | About 30% |
| **Region** | Bengal, Bihar, Orissa, Benares, Northern Circars | Madras, Bombay, Assam, parts of Berar | North-West Provinces, Punjab, Central Provinces |

### Permanent Settlement (22 March 1793)

- Zamindars became **owners**; revenue was fixed at about **10/11** of the rent collected; the zamindar kept about 1/11.
- **Sunset law:** a defaulting zamindar lost the estate at auction.
- Aims: a fixed state income, loyal zamindars and investment in land.
- Effects: auctions, absentee landlords, ruin of peasants who became tenants with no rights, and the state could not gain from rising prices.

### Ryotwari

- The peasant dealt directly with the state; revenue assessed on land and revised periodically.
- Munro introduced it in Madras as Governor (1820–27); Pringle in Bombay. Peasants paid very high rates and fell into debt.

### Mahalwari

- Unit: village or estate (mahal). Collected through the lambardar. Revised every 30 years. Holt Mackenzie's 1819 report led to Regulation VII of 1822; Bird and Thomason refined it.

> **MEMORY HOOK**
>
> **Z-R-M** = **C-M-H**: Zamindari = Cornwallis; Ryotwari = Munro; Mahalwari = Holt (Mackenzie). Largest area: Ryotwari.

**EXAM TRAPS**

- Permanent Settlement covered Punjab and UP. (No.)
- Ryotwari gave zamindars permanent rights. (No.)
- Ryotwari had no revision. (No: periodic revision.)
- Mahalwari was devised by Munro. (No: Holt Mackenzie.)

## 5. The Acts of Parliament, 1773–1858

### Regulating Act, 1773

- **Why:** the Company was bankrupt, its servants corrupt and the 1770 famine a scandal.
- Governor of Bengal became **Governor-General of Bengal** (Hastings) with a Council of four who could outvote him; Bombay and Madras were subordinated.
- **Supreme Court** at Calcutta (1774): a Chief Justice (Impey) and three judges.
- Private trade and gifts banned; Directors' terms four years.
- Weakness: the Governor-General and Council quarrelled; the Court clashed with the Council.

### Amending Act (Act of Settlement), 1781

- Governor-General and Council exempted from the Supreme Court for acts done in office.
- Court barred from revenue matters; Hindu and Muslim law to be used for natives; appeals from provincial courts to the Governor-General in Council.

### Pitt's India Act, 1784

- **Board of Control** of six commissioners (including the Chancellor of the Exchequer and a Secretary of State) supervised civil and military matters.
- The Court of Directors kept trade and patronage: **dual control** until 1858.

- Governor-General's Council reduced from four to **three**; Bombay and Madras subordinated further; Company territory called "British possessions in India".

### Act of 1786 and Charter Act of 1793

- **1786:** Governor-General could override his Council in special cases and became Commander-in-Chief (Cornwallis demanded it).
- **1793:** charter renewed for 20 years; override power extended to Madras and Bombay governors; Board of Control members paid from Indian revenues.

### Charter Act of 1813

- **Company's monopoly of Indian trade ended**, except tea and the China trade.
- **Rs 1 lakh a year** for the education of Indians and learned Indians.
- Missionaries allowed in; Crown sovereignty over Company territory asserted; commercial and territorial accounts kept separate; renewed for 20 years.

### Charter Act of 1833

- Governor-General of Bengal became **Governor-General of India** (Bentinck first); Bombay and Madras lost law-making power.
- Laws made by the Governor-General in Council were called **Acts** (earlier Regulations).
- A fourth (Law) member was added (Macaulay first); a **Law Commission** under Macaulay drafted the IPC (1837; enacted 1860).
- The Company's **commercial functions ended**; it became purely political.
- **"No native ... shall, by reason only of his religion, place of birth, descent, colour, or any of them, be disabled from holding any place, office or employment."**

## Charter Act of 1853

- The **last Charter Act**; it fixed **no period** for the Company's rule.
- Court of Directors cut from 24 to **18** (six nominated by the Crown).
- Law member made a full member of the Council; a separate **legislative council** (12 members) for making laws.
- **Open competition** for the Civil Service (Macaulay Committee, 1854).

## Government of India Act, 1858, and the Queen's Proclamation

- After the Revolt of 1857 the **Company's rule ended**; the Board of Control and Court of Directors were abolished.
- A **Secretary of State for India** (Lord Stanley first) with a **Council of India** of 15 members; the Governor-General became **Viceroy** (Canning first).
- **Queen's Proclamation, 1 Nov 1858** (read by Canning at Allahabad): no further annexations; rights of princes respected; religious tolerance; equal treatment in service; pardon for rebels except murderers.

## The Acts at a glance

| Act | Year | Main provision |
|---|---|---|
| **Regulating** | 1773 | GG of Bengal; four-member Council; Supreme Court |
| **Amending** | 1781 | Limits the Supreme Court |
| **Pitt's India Act** | 1784 | Board of Control; dual control; Council of 3 |
| **Act of 1786** | 1786 | GG overrides Council; also Commander-in-Chief |
| **Charter** | 1793 | Renewed 20 years |
| **Charter** | 1813 | Monopoly ends except tea, China; Rs 1 lakh |
| **Charter** | 1833 | GG of India; Law member; trade ends; no discrimination |

| Act | Year | Main provision |
|---|---|---|
| **Charter** | 1853 | No fixed period; open competition; legislative council |
| **GoI Act** | 1858 | Crown rule; Secretary of State; Viceroy |

**MEMORY HOOK**

**R-A-P-C-C-C-C-G**: Regulating, Amending, Pitt, Charter 1793, 1813, 1833, 1853, then Government of India Act 1858. Ending the trade: 1813 partly, 1833 fully.

**Linkage:** Famine and corruption → Regulating Act → Court vs Council clash → Amending Act → Pitt's control → trade ends (1813, 1833) → open competition (1853) → Revolt of 1857 → Crown rule (1858).

**EXAM TRAPS**

- Hastings introduced the Permanent Settlement. (No: Cornwallis.)
- The Regulating Act made the first Governor-General of India. (No: of Bengal.)
- The Charter Act of 1833 introduced open competition. (No: 1853.)
- The 1813 Act ended all Company trade. (No: except tea and China.)
- The Board of Control came with the Regulating Act. (No: 1784.)
- The Queen's Proclamation was read at Delhi. (No: Allahabad.)

## 6. Chronological order at a glance

- **1765** Diwani; Dual Government
- **1772** Hastings: Judicial Plan; farming
- **1773** Regulating Act
- **1781** Amending Act

- **1784** Pitt's India Act
- **1793** Permanent Settlement; Cornwallis Code
- **1813** Charter Act: trade monopoly ends
- **1820–22** Ryotwari; Mahalwari
- **1833** GG of India
- **1853** Open competition
- **1858** Crown rule

Sources: Spectrum, *A Brief History of Modern India*; M. Laxmikanth, *Indian Polity* (Historical Background); Bipan Chandra; standard coaching notes; question set T3-02. Written in my own words for study. Dates for minor items vary slightly between books.